

19STCP01172 19STCP01172

County: los-angeles

Division: Civil Law and Motion

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Case Number: 19STCP01172 Hearing Date: July 2, 2026 Dept: 26

TENTATIVE

RULING:

Judgment

Debtors Executive Network Enterprises, Inc. and Patricia Stephenson's Motion to Tax Costs is denied.

Analysis:

On April 10, 2019, the Court entered judgment in favor of Marius Denisiu ("Judgment Creditor") and against Executive Network Enterprises, Inc. dba Executive Limousine ("Judgment Debtor ENE") pursuant to an Order, Decision or Award of the Labor Commissioner.

On September 4,

2024, Judgment

Creditor filed a Motion to Amend Judgment. Following full briefing and oral argument by the parties, the court took the matter under submission.

(Minute Order, 10/24/24.) On October 31, 2024, the Court granted the Motion to Amend Judgment by adding Patricia Stephenson ("Judgment Debtor Stephenson") and Stori Bolton ("Defendant as additional judgment debtors. (Minute Order, 10/31/24.) On March 4, 2025, the Court granted Judgment Debtors' Motion for Reconsideration as to Judgment Debtor Bolton, but denied it as to Judgment Debtor Stephenson. (Minute Order, 03/04/25.) The amended judgment was entered on April 14, 2025.

Judgment Debtor

Stephenson filed a Motion to Vacate Judgment on October 1, 2025 and a Motion to

Vacate and Dismiss Amended Judgment on October 7, 2025. On October 28, 2025, the Court denied both Motions to Vacate. (Minute Order, 10/28/25.) Judgment Debtor Stephenson filed a Motion for Reconsideration on November 24, 2025, which the Court denied on January 22, 2026. (Minute Order, 01/22/26.) On January 8, 2026, the Court granted the Order to Show Cause Re: Why The Court Should Not Enter an Order For Sale Regarding 4764 La Villa Marina #H, Marina Del Rey, CA 90292 to Satisfy the Judgment in this Case. (Minute Order, 01/08/26.) The Order for Sale was signed and entered on January 27, 2026.

The Court denied

Judgment Debtor Stephenson's Ex Parte Application for 30 Day Continuance and Temporary Stay of Enforcement of Order for Sale on March 5, 2026. On March 16, 2026, Judgment Debtors filed the instant Motion to Tax Costs. Judgment Debtor Stephenson then filed a Substitution of Attorney on March 27, 2026, substituting out Attorney Brad Axelrod and indicating she is self-represented. On April 15, 2026, the Court denied Judgment Debtor Stephenson's Ex Parte Application to stay Sheriff's Sale. (Minute Order, 04/15/26.) On April 16, 2026, the Appellate Division issued an opinion dismissing Judgment Debtor ENE's appeal of the judgment. (Opinion, 04/16/26.)

Judgment

Creditor filed a Memorandum of Costs After Judgment on June 4, 2026 and an opposition to the instant Motion to Tax Costs on the same day. On June 9, 2026, the Court granted Judgment Creditor's Motion for Assignment Order; Judgment Debtor Stephenson filed a Motion to Vacate June 9, 2026 Assignment Order on June 22, 2026. Finally, on June 22, 2026, Judgment Debtor Stephenson filed a Supplemental Objection to Plaintiff's Memorandum of Costs through Attorney Brad Axelrod.

Discussion

Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700(b)(1).) "Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700(b)(2).) The Supplemental Objection refers to the June 4, 2026 memorandum. The Court construes the Motion to address

that Memorandum.

The Motion is primarily based on Judgment Debtors' objections to the validity of the judgment. As the Court explained in its order denying Judgment Debtor Stephenson's Ex Parte Application to Stay Sheriff's Sale, "Judgment Debtors have had several full and fair hearings of their objections to the judgment in this case. Judgment Creditor is entitled to enforce the judgment...." (Minute Order, 04/15/26, emphasis added.) Judgment Debtors nonetheless again present the same argument regarding service of the judgment. Suffice it to say at this point, Judgment Debtors' argument regarding service of the judgment is not a basis to tax the costs sought in the Memorandum of Costs.

Judgment Debtors next argue that the costs sought exceed the jurisdictional cap of the Limited Civil Court, which the Motion contends is \$25,000.00. The jurisdictional cap of the Limited Civil Court is \$35,000.00 and, in any event, the jurisdictional cap does not include costs. (Code Civ. Proc., § 85, subd. (a).) This argument is not basis to tax costs.

Third, Judgment Debtors contend the attorney's fees claimed are not reasonable because they are retaliatory. Judgment Debtors point to emails sent by Judgment Creditor's attorney stating that Judgment Debtor Stephenson and Patrica Bolton are taking a gamble by adding fees, interest, and costs to the existing judgment and that frivolous filings increase the debt owed. (Motion, Exhibit List, Exhs. F-G.) These statements do not evidence retaliation; it is not inaccurate to state that continued challenges to the judgment could increase costs owed to the Judgment Creditor. The allegation of retaliation does not demonstrate that the attorney's fees claim in the Memorandum of Costs are unreasonable. The Opposition demonstrates that Judgment Creditor is entitled to an award of attorney's fees as costs. (Opp. 2-3, 06/04/2026.) Labor Code section 98.2 expressly provides that the judgment creditor "shall be awarded court costs and reasonable attorney's fees for enforcing the judgment that is rendered pursuant to this section." (Lab. Code, § 98.2, subd. (k).)

Judgment Debtors also contend that enforcement of the judgment is barred when the judgment creditor unreasonably delays to the prejudice of the debtor. In support of this argument, the Motion refers to *In re Marriage of Cordero* (2002) 95 Cal. App.4th 653 without providing a page citation or any explanation of how it applies to this case. Nor is this argument supported by any cited evidence to demonstrate laches by Judgment Creditor. (Motion, p. 1:22-26, 2:14-15.) As discussed above, the Court has

already determined that Judgment Creditor is entitled to enforce the judgment.

Finally, in their Supplemental Objection, Judgment Debtors make further arguments regarding the reasonableness of the attorney's fees and costs, as follows: (1) Judgment Creditor relies on a summary of billing entries without providing invoices or independent documentation; (2) fees are claimed for unsuccessful enforcement efforts and motions; and (3) the costs sought are cumulative and unreconciled with costs claimed earlier. These new arguments are improperly raised for the first time in Judgment Debtors' Supplemental Objection, which is the functional equivalent of their reply, to which Judgment Creditor has not had an opportunity to respond as required by due process and the Code of Civil Procedure. (See Code Civ. Proc., § 1005, subd. (b); § 1010.)

Conclusion

Based on the foregoing, Judgment Debtors Executive Network Enterprises, Inc.'s and Patricia Stephenson's Motion to Tax Costs is denied.

Judicial Assistant to give notice.